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SUPPLIER SERVICES AGREEMENT

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Supplier Subscription – Cloudfreach CRM Ltd

Contract reference : CR-2025-003
Document type : Supplier Subscription
Status : signed
Date received : 2025-02-06
Date signed : 2025-02-20

PARTIES

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- (1) Northgate Systems Ltd
 - (2) Cloudfreach CRM Ltd
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RECITALS

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- (A) Procurement of CRM platform for the sales team, 12-month subscription.
 - (B) The commercial particulars are summarised below and, together with the standard terms and any negotiated amendments, form the whole agreement.

NOW IT IS AGREED as follows:

SUMMARY OF TERMS

Supplier's online terms + order; DPA annex; auto-renewal.

TERMS AND CONDITIONS

1. DEFINITIONS

"Services" means the services described in the Summary of Terms and any Statement of Work ("SOW"); "Northgate Data" means data made available to the Supplier in connection with the Services; "Charges" means the fees payable under this Agreement.

2. SUPPLY OF SERVICES

The Supplier shall provide the Services with reasonable skill and care, using suitably qualified and vetted personnel, in accordance with the Summary of Terms, any SOW and the agreed service levels and KPIs. Time is of the essence only where expressly stated.

3. SUB-CONTRACTING

The Supplier shall not sub-contract any material part of the Services without Northgate's prior written consent and remains responsible for the acts and omissions of its sub-contractors as if they were its own.

4. CHARGES AND PAYMENT

Northgate shall pay the Charges stated in the Summary of Terms. Unless the Schedule of Negotiated Amendments records otherwise, the Supplier shall invoice monthly in arrears and payment is due within thirty (30) days of a valid, undisputed invoice. Charges are exclusive of VAT.

5. COMPLIANCE WITH LAWS

The Supplier shall comply with all applicable laws and shall maintain and enforce policies and procedures reasonably designed to prevent bribery (Bribery Act 2010), the facilitation of tax evasion (Criminal Finances Act 2017, Part 3), and modern slavery and human trafficking in its business and supply chain (Modern Slavery Act 2015, s.54).

6. DATA PROTECTION

To the extent the Supplier processes personal data on Northgate's behalf it acts only as a processor and shall comply with the DPA and Article 28(3) UK GDPR, including obligations of confidentiality, security, assistance, breach notification, audit, sub-processor control and deletion or return of data on termination. Data-residency and international-transfer restrictions apply as recorded in the Summary of Terms and the Schedule of Negotiated Amendments.

7. INFORMATION SECURITY

The Supplier shall implement and maintain technical and organisational security measures consistent with good industry practice and POL-SEC-011, restrict access to Northgate Data to personnel with a need to know, and not access production systems or live personal data except as expressly authorised.

8. INTELLECTUAL PROPERTY

Each party retains its pre-existing intellectual property. Intellectual property rights in deliverables created specifically for Northgate under an SOW assign to Northgate on payment, and the Supplier grants a licence to any background materials necessary to use those deliverables.

9. WARRANTIES AND INSURANCE

The Supplier warrants that it has the right to enter into this Agreement and that the Services will conform to the SOW. The Supplier shall maintain adequate insurance, including professional indemnity cover, for the duration of the Agreement.

10. LIABILITY

Neither party limits liability for death or personal injury caused by negligence, fraud, or sums that cannot be limited at law. Subject to that, liability is capped and (for data-handling vendors) floored as stated in the Summary of Terms and the Schedule of Negotiated Amendments, and neither party is liable for indirect or consequential loss.

11. TERM AND TERMINATION

This Agreement runs for the term stated in the Summary of Terms. Either party may terminate for material unremedied breach or insolvency, and Northgate may terminate any SOW for convenience on notice, paying for Services properly performed to the termination date.

12. EXIT AND DATA RETURN

On termination the Supplier shall provide reasonable exit assistance and shall return or securely delete all Northgate Data and certify deletion on request, subject to any retention required by law.

13. GENERAL AND GOVERNING LAW

This Agreement is the entire agreement on its subject matter; variations must be in writing and signed. Neither party may assign without consent. This Agreement is governed by the laws of England & Wales and subject to the exclusive jurisdiction of the English courts.

GENERAL PROVISIONS

A. INTERPRETATION

Clause headings do not affect interpretation. References to a statute or statutory provision are to it as amended, extended or re-enacted from time to time and include subordinate legislation made under it. Words in the singular include the plural and vice versa, and "including" and "in particular" are illustrative and do not limit the words that precede them.

B. ENTIRE AGREEMENT

This agreement, together with the documents it incorporates and the Schedule of Negotiated Amendments, constitutes the entire agreement between the parties on its subject matter and supersedes all prior drafts, arrangements and understandings, whether written or oral. Each party acknowledges that it has not relied on an

y statement or representation not expressly set out in this agreement, save that nothing limits liability for fraud or fraudulent misrepresentation.

C. VARIATION AND WAIVER

No variation of this agreement is effective unless it is in writing and signed by an authorised representative of each party. No failure or delay by a party to exercise any right or remedy is a waiver of that or any other right or remedy, and no single or partial exercise prevents any further exercise.

D. ASSIGNMENT

Neither party may assign, transfer, charge, sub-contract or deal in any other manner with any of its rights or obligations under this agreement without the prior written consent of the other (such consent not to be unreasonably withheld or delayed), save that either party may assign to an affiliate or to a successor in connection with a bona fide reorganisation or sale of the relevant business.

E. SEVERANCE

If any provision of this agreement is or becomes invalid, illegal or unenforceable, it shall be deemed modified to the minimum extent necessary to make it valid, legal and enforceable; if such modification is not possible, the relevant provision is deemed deleted. Any modification to or deletion of a provision does not affect the validity and enforceability of the rest of this agreement.

F. NOTICES

Any notice given under this agreement shall be in writing, addressed to the relevant party at its registered office or principal place of business (or such other address as notified), and delivered by hand, pre-paid first-class post or email to the address notified for that purpose. A notice is deemed received: if delivered by hand, on signature; if by post, at 9.00am on the second business day after posting; and if by email, on transmission, subject to confirmation of delivery.

G. FORCE MAJEURE

Neither party is in breach of this agreement or otherwise liable for any failure or delay in performance (other than a payment obligation) caused by an event beyond its reasonable control. The affected party shall notify the other and use reasonable endeavours to mitigate the effect. If the event continues for more than sixty (60) days, either party may terminate on written notice.

H. THIRD PARTY RIGHTS

Except as expressly stated in this agreement, a person who is not a party has

no right under the Contracts (Rights of Third Parties) Act 1999 to enforce any term of this agreement, and the consent of any third party is not required to vary or rescind it.

I. DISPUTE RESOLUTION AND ESCALATION

The parties shall attempt in good faith to resolve any dispute by escalation to their respective senior representatives within fourteen (14) days of written notice of the dispute. If the dispute is not resolved within a further thirty (30) days, either party may pursue its rights and remedies, without prejudice to either party's right to seek urgent injunctive relief at any time.

J. COUNTERPARTS AND ELECTRONIC SIGNATURE

This agreement may be executed in any number of counterparts, each of which when executed constitutes an original and all of which together constitute one and the same instrument. Execution by electronic signature is valid and binding.

SCHEDULE OF NEGOTIATED AMENDMENTS (TRACKED CHANGES)

This Schedule records each redline agreed against the standard form above, the counterparty position it replaced, and the policy or legislation relied on. It forms part of this agreement and prevails over the standard wording it varies.

AMENDMENT 1 [2025-02-11] - AMENDED
Clause affected: Data Processing (Processor Obligations)
(+) Negotiated amendment:
+ Processor obligations added to DPA annex.
Governing basis: UK GDPR, Art. 28(3); POL-PRIV-001

AMENDMENT 2 [2025-02-17] - AMENDED
Clause affected: Renewal & Notice
(-) Counterparty position / prior wording, struck:
- 90
(+) Agreed substituted wording:
+ 30 days and diarised
Governing basis: Playbook §6.1

EXECUTION

Executed by the parties on the dates set out below. This agreement may be signed in counterpart and by electronic signature.

Signed for and on behalf of Northgate Systems Ltd:

Signature: _____

Name: _____
Title: _____
Date: 2025-02-20

Signed for and on behalf of Cloudreach CRM Ltd:

Signature: _____
Name: _____
Title: _____
Date: 2025-02-20

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SIMULATED PLACEHOLDER CONTRACT – Northgate Systems Ltd corpus.
Generated from the contract register; not a real legal document.

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